

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
DIRK ROHAN,

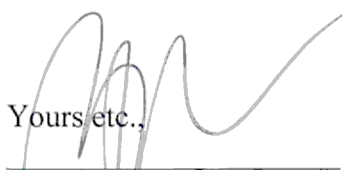
Plaintiff,

-against-

THE CITY OF NEW YORK,
POLICE CAPTAIN ROBERT O'HARE (Tax ID# 916960),
P.O. AMANDA PSAREAS (Shield# 03575), POLICE OFFICER
"JOHN DOE" #1-10, (the name "John Doe" being fictitious,
as the true names are presently unknown), individually and in
their official capacity,Defendants.
-----X

To the above named Defendant:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this summons, to serve a Notice of Appearance, on the Plaintiffs' attorney (s) within 20 days after the service of this summons, exclusive of the day of the service (or within 30 days after the service is completed if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 21, 2018Yours etc.,
By: BRYAN KONOSKI
TREYVUS & KONOSKI, P.C.
Attorneys for the Plaintiff
305 Broadway, 14th Floor
New York, NY 10007
(212) 897-5832**Index No.:**Plaintiff designates
New York County as
place of trial.
The basis of Venue is
the location of the incident
(CPLR 504(3)).**SUMMONS**The Plaintiff resides at:Dirk Rohan
4006 12th Street, Apt. 5B
Long Island City, NY 11101

Defendants' Addresses:

CITY OF NEW YORK

100 Church Street

New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----x **Index No.:**

DIRK ROHAN,

Plaintiff,

VERIFIED COMPLAINT

-against-

JURY TRIAL DEMANDED

THE CITY OF NEW YORK,
POLICE CAPTAIN ROBERT O'HARE (Tax ID# 916960),
P.O. AMANDA PSAREAS (Shield# 03575), P.O.
"JOHN DOE" #1-10, (the name "John Doe" being fictitious,
as the true names are presently unknown), individually and in
their official capacity,

Defendants.

-----x
Plaintiff, DIRK ROHAN, by his attorney, TREYVUS & KONOSKI, P.C., complaining
of the defendants, respectfully allege as follows:

PARTIES

1. Plaintiff, DIRK ROHAN, is a citizen of the United States and at all relevant times he was a resident of the City and State of New York.

2. THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. THE CITY OF NEW YORK, maintains the New York City Police Department, a duly organized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.

4. That at all times hereinafter mentioned, the individually named defendants, POLICE

CAPTAIN ROBERT O'HARE, P.O. AMANDA PSAREAS, and P.O. "JOHN DOE" #1-10, were duly sworn police officers of the New York City Police Department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York or THE CITY OF NEW YORK.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, CITY OF NEW YORK.

FACTS

8. On or about July 12, 2017, at approximately 6:32 A.M., at or about the south east corner of 7th Avenue and West 14th Street, in the County and State of New York, the Plaintiff sat in his vehicle and drove away while P.O. AMANDA PSAREAS was performing her job duties nearby. Upon information and belief P.O. AMANDA PSAREAS was acting in her official function by issuing traffic and/or parking tickets in the vicinity.

9. As the Plaintiff was driving away he was promptly pulled over by POLICE CAPTAIN ROBERT O'HARE.

10. POLICE CAPTAIN ROBERT O'HARE fabricated allegations against the Plaintiff and stated, under oath, in a criminal complaint, that he "observed the defendant¹ clench his left hand and make a fist. I further observed the defendant swing that fist towards Officer Amanda

¹ The reference to the "defendant" in the criminal complaint is the Plaintiff, Dirk Rohan.

Psareas.” POLICE CAPTAIN ROBERT O’HARE further stated in the criminal complaint that, “I am informed by Ms. Psareas . . . that because she was engaged in an altercation with the defendant due to the defendant’s above stated conduct, she was taken away from her daily duties as an officer.” As a result of these allegations, the Plaintiff was charged with Obstructing Government Administration in the Second Degree (PL 195.05), and Attempted Assault in the Third Degree (PL 110/120.00(1)).

11. The charges and allegations set forth above in Paragraph 10 of this civil complaint were false and fabricated. The Plaintiff did not commit any crime, and did not attempt to assault P.O. AMANDA PSAREAS.

12. POLICE CAPTAIN ROBERT O’HARE and/or P.O. AMANDA PSAREAS called for “backup”. As a result, additional police officers arrived on the scene. These additional police officers are referred to as P.O. JOHN DOE # 1- 10. It is also unknown at this time whether POLICE CAPTAIN ROBERT O’HARE or P.O. AMANDA PSAREAS were accompanied by other police officers at the time the Plaintiff was originally stopped and before “backup” arrived. To the extent that there were other police officers with POLICE CAPTAIN ROBERT O’HARE or P.O. AMANDA PSAREAS at the time the Plaintiff was originally stopped, these additional police officers shall also be included as being part and parcel with P.O. JOHN DOE #1-10.

13. The Plaintiff was placed into handcuffs and brought into custody against his will.

14. The Defendant police officers did not have any probable cause or legal authority whatsoever to stop the Plaintiff, handcuff the Plaintiff, arrest the Plaintiff, and bring him into custody. The Plaintiff spent approximately 1 day in custody before being released.

15. The Plaintiff defended the criminal charges against him for nearly a year, from the date he was arrested on July 12, 2017, until June 6, 2018. The criminal charges against him were dismissed on June 6, 2018.

16. As a result of the foregoing, plaintiff sustained, inter alia, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment and humiliation, shame, indignity, damage to reputation, and deprivation of her constitutional rights.

FEDERAL LAW CAUSES OF ACTION

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

17. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “16” with the same force and effect as if fully set forth herein.

18. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of law.

19. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America and in violation of 42 U.S.C. § 1983.

20. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

21. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the

supervision of ranking officers of said department.

22. Defendants collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C § 1983**

23. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "22" with the same force and effect as if fully set forth herein.

24. As a result of defendants' aforementioned conduct, the plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated by the defendants without any probable cause, privilege or consent.

25. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and plaintiff was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, all without probable cause, and plaintiff sustained, inter alia, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment and humiliation, shame, indignity, damage to reputation, and deprivation of his constitutional rights.

**THIRD CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "25" with the same force and effect as if fully set forth herein.

27. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff.

28. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff.
29. Defendants acted with malice in initiating criminal proceedings against Plaintiff.
30. Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff.
31. Defendants lacked probable cause to continue criminal proceedings against Plaintiff.
32. Defendants acted with malice in continuing criminal proceedings against Plaintiff.
33. Notwithstanding the conduct of the Defendants, the criminal proceedings were terminated in Plaintiff's favor on or about June 6, 2018, when all criminal charges against him were dismissed.
34. As a result of the foregoing, Plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

FOURTH CLAIM FOR RELIEF
FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "34" with the same force and effect as if fully set forth herein.
36. P.O. AMANDA PSAREAS, and P.O. "JOHN DOE" #1-10, each knew that POLICE CAPTAIN ROBERT O'HARE unlawfully stopped and arrested the Plaintiff, and fabricated allegations and criminal charges against the Plaintiff. Despite knowing that the allegations and charges were fabricated, P.O. AMANDA PSAREAS, and P.O. "JOHN DOE" #1-10, failed to stop the false arrest, malicious prosecution, and civil rights violations against the Plaintiff.
37. As a result of the foregoing, Plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional

rights.

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “37” with the same force and effect as if fully set forth herein.

39. Defendants including THE CITY OF NEW YORK, POLICE CAPTAIN ROBERT O’HARE, P.O. AMANDA PSAREAS, and P.O. “JOHN DOE” #1-10, subjected the Plaintiff to a false arrest as set forth in the aforementioned causes of action.

40. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials with all the actual and/or apparent authority attendant thereto.

41. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK, all under the supervision of ranking officers of the New York City Police Department.

42. The aforementioned customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, include but are not limited to the following unconstitutional practices:

- (a) Failing to properly train, in general;
- (b) Failing to supervise police officers;
- (c) Subjecting persons to violations of their constitutionally protected rights;
- (d) Subjecting persons to false arrest;
- (e) Subjecting persons to the excessive use of force.

43. The existence of the aforesaid unconstitutional customs and policies may be inferred

from the actions taken by the defendant police officers.

44. The foregoing customs, policies, usages, practices, procedures and rules of the THE CITY OF NEW YORK and the New York City Police Department constituted a deliberate indifference to the safety, well-being, and constitutional rights of the Plaintiffs.

45. The foregoing customs, policies, usages, practices, procedures and rules of the THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

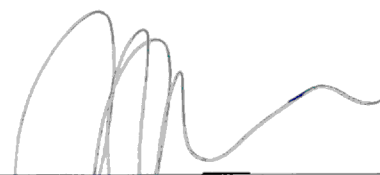
46. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers and were directly responsible for the violation of plaintiffs' constitutional rights, for which THE CITY OF NEW YORK is liable.

DAMAGES AND RELIEF REQUESTED

WHEREFORE, plaintiff demands judgment against the Defendants pursuant to the federal causes of action above, in the sum of FIVE MILLION DOLLARS (\$5,000,000.00) in compensatory damages, and FIVE MILLION DOLLARS (\$5,000,000.00) in punitive damages, plus attorney's fees, costs and disbursements of this action, and with interest at the legal rate from the date the cause of action accrued.

Dated: New York, NY
September 21, 2018

By:


BRYAN KONOSKI
Treyvus & Konoski, P.C.
Attorney(s) for the Plaintiff
305 Broadway, 14th Floor
New York, NY 10007
(212) 897-5832

Defendants' Addresses:

CITY OF NEW YORK

100 Church Street

New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
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as the true names are presently unknown), individually and in
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Defendants.

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**NOTICE OF COMMENCEMENT OF ACTION
SUBJECT TO MANDATORY ELECTRONIC FILING**

PLEASE TAKE NOTICE that the matter captioned above, which has been commenced by filing of the accompanying documents with the County Clerk, is subject to mandatory electronic filing pursuant to Section 202.5-bb of the Uniform Rules for the Trial Courts. This notice is served as required by Subdivision (b)(3) of that Section.

For information about electronic filing, including access to Section 202.5-bb, consult the website of the New York State Courts Electronic Filing System ("NYSCEF") at www.nycourts.gov/efile or contact the NYSCEF Resource Center at 646-386-3033 or efile@courts.state.ny.us.

Dated: New York, N.Y.
September 21, 2018

By:

Yours etc.,


BRYAN KONOSKI
Tréyvus & Konoski, P. C.
Attorney(s) for the Plaintiffs
305 Broadway, 14th Floor
New York, N.Y. 10007
(212) 897-5832

Defendants' Addresses:
CITY OF NEW YORK
100 Church Street
New York, NY 10007

VERIFICATION

STATE OF NEW YORK) ss:

COUNTY OF Ny)Dirk Rohan, being duly sworn, deposes and says:

I am the plaintiff in this action. I have read the foregoing Verified Complaint and know the contents thereof; and the same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and to those matters I believe them to be true.

By: Sworn to before me this 26 day
Of September, 2018
NOTARY PUBLIC

BRYAN M. KONOSKI
Notary Public, State of New York
Registration #02KO6088079
Qualified In Richmond County
Commission Expires March 31, 2019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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DIRK ROHAN,

Plaintiff,

-against-

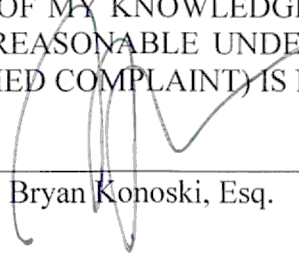
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as the true names are presently unknown), individually and in
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Defendants.

-----x

SUMMONS AND VERIFIED COMPLAINT

PURUSANT TO SEC. 130.1.1 OF THE RULES OF THE CHIEF ADMINISTRATOR (22nycrr),
I CERTIFY THAT TO THE BEST OF MY KNOWLEDGE, INFORMATION AND BELIEF,
FORMED AFTER AN INQUIRY REASONABLE UNDER THE CIRCUMSTANCES, THE
WITHIN (SUMMONS AND VERIFIED COMPLAINT) IS NOT FRIVOLOUS.



Bryan Konoski, Esq.

TREYVUS & KONOSKI, P.C.
Attorneys for the Plaintiffs

305 Broadway, 14th floor
New York, N.Y. 10007
(212) 897-5832
Fax: (718) 668-1094